

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500446	TODD vs VEVOR STORE, LLC,	MOTION PRO HAC VICE - JOSEPH D. COHEN AS TO LUCAS TODD

Tentative Ruling:

Defendant Vevor's Application for Joseph D. Cohen to Appear Pro Hac Vice pursuant to CRC §9.40 is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505408	THE CHANG FAMILY TRUST, BY AND THROUGH ITS CO-TRUSTEES, JOHN H. CHANG AND AILEEN HSIAOLIN WANG vs ANGEL	HEARING ON RIGHT TO ATTACH ORDER (x3)

Tentative Ruling:

Plaintiffs John Chang and Aileen Hsiaolin Wang, trustees of The Chang Family Trust's Application for Writs of Attachment are denied.

An attachment is a provisional remedy to aid in the collection of money by seizure of property in advance of trial and judgment. (*Kemp Bros. Const., Inc. v. Titan Elec. Corp.* (2007) 146 Cal.App.4th 1474, 1476.) It creates a judicial lien on the debtor's attachable property and protects the plaintiff's priority. (Ahart, *California Practice Guide: Enforcing Judgments and Debts* § 4:3 (Rutter Group 2026).)

An attachment may be issued only if the claim sued upon meets the following requirements: (1) a "claim for money ... based upon a contract, express or implied"; (2) of a "fixed or readily ascertainable amount not less than \$500"; (3) that is either unsecured or secured by personal property; and (4) that is a commercial claim. (Code Civ. Proc., § 483.010; *Goldstein v. Barak Const.* (2008) 164 Cal.App.4th 845, 852.) To obtain a right to attach order, the plaintiff has the burden of proving (1) that the claim is one on which an attachment may be issued pursuant to Code of Civil Procedure section 483.010; (2) the probable validity of such claim; and (3) that the attachment is not sought for any purpose other than to secure recovery on the claim. (Code Civ. Proc., § 484.090.) "Probable validity" is established when "it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (*Id.* at § 481.190.) "The legality of the attachment must be determined from the pleadings, proceedings and entire record in the attachment suit to ascertain therefrom what, in fact, the real grievance is for which relief is sought." (*Stowe v. Matson* (1949) 94 Cal.App.2d 678, 682.) A plaintiff must establish a prima facie case. (*Pech v. Morgan* (2021) 61 Cal.App.5th 841, 854.) When opposed, the court must "consider the relative merits of